49. Liquidated Damages

49.1 The Contractor shall pay liquidated damages to the Employer at the rate per day stated in the Contract Data for each day that the Completion Date is later than the Intended Completion Date (for the whole of the works or the milestone as stated in the contract data). The total amount of liquidated damages shall not exceed the amount defined in the Contract Data. The Employer may deduct liquidated damages from payments due to the Contractor. Time is the essence of the contract and payment or deduction of liquidated damages shall not relieve the contractor from his obligation to complete the work as per agreed construction program and milestones or from any other of the contractor's obligations and liabilities under the contract.

49.2 If the Intended Completion Date is extended after liquidated damages have been paid, the Engineer shall correct any overpayment of liquidated damages by the Contractor by adjusting the next payment certificate.

49.3 Liquidated damages for O&M Work:

1) In case the Contractor fails to meet the technical standards more specifically towards the quality of the treated sewage, the Contractor shall pay to the owner Liquidated Damages on *per day* of occurrence, over and above the costs and compensation that might be required by the Owner to pay to the affected people and parties in the effluent discharge area (As per contract data).
2) Applicability of the Liquidated Damages shall be determined based on the weekly monitoring report of the quality of the treated effluent, submitted by the nominated Laboratory, *like the one under the control of State PCB.* The said Laboratory will test the samples [minimum 3 grab samples representative of different flow conditions (quantum and quality wise) in the day] of the treated effluent drawn every week jointly by the Owner and the Operator and the results of the test report shall be binding on both the parties.
3) If any of the grab samples of the effluent so tested fails to meet with the CPCB /State PCB standards stipulated in the Contract, Liquidated Damages as stated herein above shall be deducted from the O & M payments due to the Operator for all the seven days of the week.
4) The Operator shall maintain the STP for treating the sewage without any interruption by ensuring timely measures for preventive maintenance. However, if the STP is unavailable for treating the sewage for a period exceeding 24 hours for reasons attributable to the Operator, Liquidated Damages shall be levied by the Owner per day for the period the STP is not available beyond the allowed time of 24 hours as referred to above for repair/rectification. The Liquidate Damages shall apply over and above the

S.E./ Contr.

costs and compensation which shall be reimbursed by the Operator in case such costs/compensations are required to be paid by the Owner to the affected people and parties in the effluent discharge area.